

24STCV20950 24STCV20950

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 24STCV20950 Hearing Date: July 2, 2026 Dept: 529

JAMES A KIM, ET AL. VS AMERICAN HONDA MOTOR CO., INC.

DEFENDANT'S

MOTION TO COMPEL COMPLIANCE WITH THE COURT'S FEBRUARY 19, 2026 DISCOVERY ORDER
AND REQUEST FOR SANCTIONS

Date

of Hearing: July 2, 2026 Trial Date: None

set

Department: 529 Case No.: 24STCV20950

Moving

Party: Defendant American Honda

Motor Co.

Responding

Party: No opposition.

BACKGROUND

This is a lemon law action. On August

19, 2024, Plaintiffs James A Kim and James A Kim MP APMC filed a complaint

against American Honda Motor Co., Inc. for various violations of the

Song-Beverly Consumer Warranty Act. On December 3, 2024, Plaintiff filed a

First Amended Complaint.

[TENTATIVE]

RULING

Defendant's Motion to Compel Compliance with the Court's February 19, 2026 Discovery Order and Request for Sanctions is GRANTED.

DISCUSSION

Defendant

Honda moves for an order compelling Plaintiffs James A. Kim and James A. Kim MD APMC's compliance with the court's February 19, 2026 Discovery Order granting Defendant's motion to compel discovery responses.

"[I]f a party fails to obey an order compelling further response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (CCP § 2031.310(i).)

Defendant argues as a failure to respond to Defendant's discovery requests, Defendant filed several motions to compel discovery responses. The court granted Defendant's motions to compel discovery on February 19, 2026, (Carter Decl. ¶3.) Notably, the court ordered Plaintiff to provide further responses without objection and verifications within 10 days. (Carter Decl. ¶3, Exh. A.) On April 20, 2026, Defendant sent correspondence to Plaintiffs requesting Plaintiffs provide their further responses without objections and verifications on or by April 24, 2025. (Carter Decl. ¶4, Exh. B.) Plaintiff's Counsel responded, asking for an extension and Defendant agreed. (Carter Decl. ¶4, Exh. B.) Despite this, Plaintiff's counsel has not provided any further verified responses to Defendant's requests for discovery. (Carter Decl. ¶5.)

As a result of Plaintiff's failure to comply with the February 19, 2026 Court Order, the court GRANTS Defendant's motion to compel compliance. The court notes the instant motion is unopposed. Plaintiff is ordered to produce discovery responses without objection and verification within 5 days.

The court notes Defendant also requests this court impose monetary sanctions of \$500 per day until Plaintiff's comply with the court's prior court order. The court denies the request to impose monetary sanctions as the

circumstances are not such that the \$500 per day requested is warranted.